

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Khristoph A. Becker	Team: Team # 6	CCRB Case #: 200901703	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/03/2009 2:40 PM	Location of Incident: 115 Oxford Street	18 Mo. SOL 8/3/2010	Precinct: 61		
Date/Time CV Reported Tue, 02/03/2009 10:19 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 02/03/2009 10:19 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Dannecker	01425	923735	NARCBBS
2. POF Victoria Lafauci	29606	928606	NARCBBS
3. DT3 Joseph Desantis	00172	921060	NARCBBS
4. LT Paul Putkowski	00000	892581	061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Edward Wilson	05683	919872	NARCBBS
2. POM Oleg Uruymagov	01981	935891	NARCBBS
3. POF Tanagne Scott	16141	937846	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael Dannecker	Abuse: Sgt. Michael Dannecker stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POF Victoria Lafauci	Discourtesy: PO Victoria Lafauci spoke obscenely to § 87(2)(b)	B . Unsubstantiated
C . SGT Michael Dannecker	Abuse: Sgt. Michael Dannecker searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Exonerated
D . DT3 Joseph Desantis	Discourtesy: Det. Joseph Desantis spoke obscenely to § 87(2)(b)	D . Unsubstantiated
E . DT3 Joseph Desantis	Off. Language: Det. Joseph Desantis made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)	E . Unsubstantiated
F . DT3 Joseph Desantis	Abuse: Det. Joseph Desantis refused to provide his name to § 87(2)(b)	F . Unsubstantiated
G . POF Victoria Lafauci	Abuse: PO Victoria Lafauci refused to provide her name to § 87(2)(b)	G . Unfounded
H . LT Paul Putkowski	Abuse: Lt. Paul Putkowski threatened to arrest § 87(2)(b)	H . Exonerated

Synopsis

On February 03, 2009, § 87(2)(b) called the CCRB and filed this complaint via the call-processing system (enc.4a-c). She stated that on February 03, 2009, at approximately 2:35pm, she and two of her friends, § 87(2)(b) and § 87(2)(b) were hanging out in her black, four-door Toyota Matrix at § 87(2)(b), in Brooklyn. § 87(2)(b) sat in the driver's seat, § 87(2)(b) sat in the front passenger seat, and § 87(2)(b) sat in the rear, passenger-side seat. The car was off. After hanging out for about five minutes, an unmarked police car rapidly reversed from the end of the block and Officer Victoria LaFauci, Detective Edward Wilson, and Sergeant Michael Dannecker, all of Brooklyn South Narcotics, jumped out. They approached and circled § 87(2)(b)'s vehicle (**Allegation A**). PO LaFauci stood by the driver-side door and allegedly told § 87(2)(b) to "open the fucking door and get the fuck out of the car" (**Allegation B**). § 87(2)(b) and § 87(2)(b) were each removed from the vehicle, handcuffed, frisked, and searched. § 87(2)(b)'s pants slid down at one point, so she asked PO LaFauci if she could pick them up. PO LaFauci allegedly replied: "No. Don't fucking move." PO LaFauci and one of the other officers searched everywhere inside § 87(2)(b)'s vehicle except the trunk (**Allegation C**). After about fifteen minutes, the officers found marijuana on the street, underneath the vehicle. § 87(2)(b) later told § 87(2)(b) he had thrown it there when one of the officers opened his door.

The officer put § 87(2)(b) and § 87(2)(b) into a prisoner van driven by Detective Joseph DeSantis and Officer Oleg Uruymagov, both of Brooklyn South Narcotics. § 87(2)(b) asked if her rights could be read and Det. DeSantis allegedly said: "You have the right to shut the fuck up" (**Allegation D**). Det. DeSantis also allegedly told § 87(2)(b) "If I had a daughter, I wouldn't let her dress like a slut, like you" (**Allegation E**). § 87(2)(b)'s family arrived at the precinct at approximately 7:00pm to pick her up. Her mother, § 87(2)(b) walked towards the front desk when Det. DeSantis allegedly yelled: "Who told you that you could come in here?! Get back there! Back up!" When § 87(2)(b) requested his name, Det. DeSantis allegedly refused to provide it (**Allegation F**). PO LaFauci also allegedly refused to provide her name (**Allegation G**). Lieutenant Putkowski then allegedly yelled: "Get out before we charge you with trespassing" (**Allegation H**)!

§ 87(2)(g)

It is therefore recommended that **Allegations A, C and H** be closed as *exonerated*. § 87(2)(g)

It is therefore recommended that **Allegations B, D, E, and F** be closed as *unsubstantiated*. § 87(2)(g)

it was determined that the allegation did not occur. It is therefore recommended that **Allegation G** be closed as *unfounded*.

Summary of Complaint

On February 03, 2009, § 87(2)(b) filed this complaint with the CCRB (enc.4a-c). On March 16, 2009, § 87(2)(b) was interviewed at the CCRB (enc.5a-g). § 87(2)(g)

On February 03, 2009, § 87(2)(b) and her friend, § 87(2)(b) drove from her high school to Oxford Street in Brooklyn because she did not have a last period class and had some time before her three o'clock basketball practice. As she turned onto Oxford Street, she saw two males from school—§ 87(2)(b) and § 87(2)(b)—by a pizzeria on the corner of Oxford Street and Oriental Blvd. She said hello to them and then saw another friend, § 87(2)(b) at the corner coming out of the Kings Borough College campus. § 87(2)(b) ran up to § 87(2)(b)'s vehicle and she let him in. He sat behind the passenger

seat. § 87(2)(b) then proceeded along Oxford Street and parked between Shore and Oriental Boulevards.

§ 87(2)(b) and § 87(2)(b) sat in the parking spot, just hanging out and listening to music. § 87(2)(b) mentioned he had smoked marijuana before getting into the vehicle, and that he bought it from § 87(2)(b). § 87(2)(b) said he purchased a “nick,” which is a small amount worth about five dollars. § 87(2)(b) was aware that § 87(2)(b) dealt marijuana and stated, “That’s who you get it from if you have to get it.” At approximately 2:40pm, after sitting in the vehicle for approximately five minutes, a Toyota Altima or Maxima backed up very rapidly from the beginning of the block, nearly hitting § 87(2)(b)’s vehicle. Three plain-clothed officers, identified by the investigation as Sgt. Michael Dannecker, PO Victoria LaFauci, and Det. Edward Wilson of Brooklyn South Narcotics jumped out and banged on § 87(2)(b)’s windows [it was determined that there were only three officers at this time even though § 87(2)(b) stated there were four]. She thought she was being robbed.

PO LaFauci stood by § 87(2)(b)’s door and the other officers stood around the car. PO LaFauci said: “Open the fucking door and get the fuck out of the car.” PO LaFauci instructed § 87(2)(b) to unlock the doors. § 87(2)(b) had her hands on the steering wheel, then briefly removed her hands to unlock the door and put her hands back on the steering wheel. PO LaFauci then opened the door, grabbed § 87(2)(b) by her left arm, and forcefully pulled her out of the vehicle. § 87(2)(b) was not resisting, and was willing to get out of the car on her own volition. She did not have a seatbelt on.

PO LaFauci then threw § 87(2)(b) against the rear, driver-side door of § 87(2)(b)’s vehicle, put her hands behind her back, and immediately applied handcuffs. PO LaFauci frisked and searched § 87(2)(b) by patting her down and going inside of her pockets. Each of the officers searched § 87(2)(b) and § 87(2)(b). § 87(2)(b)’s pants slid down a few inches so the upper part of her behind was showing. She asked PO LaFauci if she could pick up her pants. PO LaFauci responded: “No. Don’t fucking move.” PO LaFauci also told § 87(2)(b) to shut up. § 87(2)(b) did not curse.

PO LaFauci and another male officer proceeded to search everywhere inside the vehicle except the trunk. PO LaFauci ripped a piece of leather upholstery on § 87(2)(b)’s back seat. It was ripped about one inch. § 87(2)(b) watched PO LaFauci pull and rip it, but § 87(2)(b) did not know if the leather had already been slightly torn. § 87(2)(b) has not had the leather repaired. After about fifteen minutes of searching, the officers found marijuana on the street, underneath the car. § 87(2)(b) later told § 87(2)(b) that he had thrown it there when one of the officers opened his door, and that he was surprised the officer had not seen it.

The officers put § 87(2)(b) and § 87(2)(b) into a prisoner van driven by two officers, PO1 and PO2, identified by the investigation as Det. DeSantis and PO Uruymagov of Brooklyn South Narcotics. The van then drove to the corner of Oxford Street and Oriental Blvd. and picked up § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) was on the corner by the pizzeria while § 87(2)(b) sold to a police officer. At one point, § 87(2)(b) asked if her rights could be read and Det. DeSantis said: “You have the right to shut the fuck up.” Detective DeSantis [erroneously identified by § 87(2)(b) as Det. Wilson], told § 87(2)(b) “If I had a daughter I wouldn’t let her dress like a slut, like you.”

§ 87(2)(b)’s mother, father, sister, and brother came to pick her up from the precinct around 8pm § 87(2)(b) and § 87(2)(b) respectively). § 87(2)(b)’s mother saw her and began walking towards her when officers started to yell and curse at her. § 87(2)(b) did not recall who cursed or what was said. PO LaFauci and Detective Wilson were at the precinct, as was a Lt. Putkowski (self-identified when § 87(2)(b)’s father requested his name), who instructed § 87(2)(b)’s mother, father, sister, and brother to leave.

Results of Investigation

Attempts to Contact Witnesses

On March 16, 2009, the investigator called and left messages for § 87(2)(b) and § 87(2)(b) (enc.30a-h). § 87(2)(b)’s mother called back that day and said she would have her daughter call. § 87(2)(b) called the

following day and scheduled an interview for March 25, 2009. He did not appear for his interview and did not call to cancel or re-schedule, so a missed appointment letter was sent that same day. On March 26, 2009, the investigator called § 87(2)(b) to see if he would like to re-schedule. § 87(2)(b) answered the phone and said he would call back, which he never did. The investigator called § 87(2)(b) two more times on March 26, and April 02, 2009, and sent her first and final please call letters on April 06 and 09, 2009. Two additional calls were placed on September 11 and 17, 2009. To date, § 87(2)(b) has not called back to re-schedule his interview, and § 87(2)(b) has never contacted the investigator.

On March 16, 2009, contact was established with § 87(2)(b) and an interview was scheduled for March 26, 2009 (enc.30a-h). She did not appear for her interview and did not call to cancel or re-schedule. The investigator called her on April 02, 2009, to see if she would like to re-schedule, and she said she would call back. She never called back, so a missed appointment letter was sent on April 06, 2009. To date, § 87(2)(b) has not contacted the investigator to re-schedule her interview. No attempts were made to contact § 87(2)(b) because § 87(2)(b) explained that he is mentally handicapped and would be unable to provide testimony.

Phone Statement: § 87(2)(b)

On March 17, 2009, § 87(2)(b) called the investigator and provided the following details (enc.30a-h). He stated that he, § 87(2)(b) and § 87(2)(b) were smoking in the vehicle. The officers were cursing at them, but he could not identify an officer, except Det. Wilson from the arrest report. § 87(2)(b) thought they were getting robbed and said § 87(2)(b) seemed hesitant to get out of the vehicle. The female officer, identified by the investigation as PO LaFauci, grabbed § 87(2)(b)'s arm and pulled her out. § 87(2)(b) threw the marijuana on the ground, between the car and the gutter. His main complaint was that the officers were very rude.

Civilian Statement: § 87(2)(b)

On March 16, 2009, § 87(2)(b) was interviewed at the CCRB (enc.6a-e). § 87(2)(g)

On February 03, 2009, at approximately 7:00pm, § 87(2)(b) and § 87(2)(b) went to the 61st Precinct to pick up § 87(2)(b). When they arrived, people were sitting in the waiting area. A black, female officer, identified by the CCRB as Officer Tanagne Scott of the 61st Precinct, sat by a desk with a phone, and there were a few other civilians or officers in plain-clothes. § 87(2)(b) wanted to see where her daughter was, so she moved to the right and stepped up two steps. There were no signs or barriers. From the second step, § 87(2)(b) could see § 87(2)(b) in another room. At this point, a plain-clothed officer, PO1 (male, white, 5'9", slim, 165lbs, early 30s), identified by the CCRB as Det. DeSantis, approached § 87(2)(b) and started screaming: "What are you doing!? Who told you that you could come in here!? Get back there! Back up!" § 87(2)(b) yelled back: "I am backing up! What's wrong with you!? There's no sign saying I can't come over here!" Det. DeSantis yelled: "Common sense!" § 87(2)(b) then asked Det. DeSantis for his name and he refused to provide it. He did not have a badge on.

PO Scott and a heavysset, white, female officer in plainclothes, identified by the investigation as PO LaFauci, then approached and started screaming. Other officers also started yelling at this point for § 87(2)(b) and her family to leave, and § 87(2)(b) said, "You must be kidding me!" § 87(2)(b) continued to ask for other officers' names, including PO LaFauci, but no one provided them. § 87(2)(b) then walked to § 87(2)(b) with the paperwork and another officer with a white shirt, identified by the investigation as Lt. Putkowski, approached and said, "Get out! This is my precinct!" § 87(2)(b) said she had not done anything. All of the officers yelled again, "Just get out!" § 87(2)(b) was shaking and said this is what she had gone through all day. Lt. Putkowski then yelled, "Get out before we charge you with trespassing!" § 87(2)(b) and her family then drove home and filed this complaint. The incident lasted no more than five minutes.

Phone Statement: § 87(2)(b)

On April 06, 2009, § 87(2)(b) was interviewed by telephone (enc.8a-b). § 87(2)(g)

When § 87(2)(b) and § 87(2)(b) arrived at the 61st Precinct, there were four officers behind the desk (PO1, PO2, PO3, and PO4). PO1 was described as an approximately 5'8"-9", 200lb., twenty-four or twenty-five year-old white male with dark hair, a fit build, and plainclothes (identified by the CCRB as Det. DeSantis). PO2 was described as a white male with a white shirt and stripes (identified by the investigation as Lt. Putkowski). PO3 was described as a black female who sat behind the front desk (identified by the CCRB as PO Scott). PO4 was described as an approximately 5'7"-8", 180-190lb., twenty-five or twenty-six year-old black male dressed in uniform.

When § 87(2)(b) stepped inside to see where her daughter was, Det. DeSantis said: "What are you doing?" § 87(2)(b) saw a sign covered by a chair but he did not recall what the sign said. § 87(2)(b) said, "I'm not going inside. I just took one step." Det. DeSantis continued: "What are you doing?" Det. DeSantis also said something to the effect of, "Your daughter's like that because of you guys. You don't know how to raise your kids." § 87(2)(b) then asked Det. DeSantis, "What's your name?" § 87(2)(b) did not think Det. DeSantis responded, at which point Lt. Putkowski said: "Everybody out. Get out of my station." § 87(2)(b) told Det. DeSantis to show some respect. § 87(2)(b) said § 87(2)(b) remained quiet, and said that she was upset insofar as she asked Det. DeSantis for his name; she did not act upset in any other way, nor did she yell at the officers. § 87(2)(b) said PO Scott also yelled at § 87(2)(b) but he did not remember what she said. § 87(2)(b) stated that although he was upset, he did not behave in an upset manner. § 87(2)(b) did not recall the names of any officers. § 87(2)(b) also indicated that although he is not fluent in English, he was able to hear everything clearly, and that everything he told the investigator he had heard directly.

Identification of Officers Interviewed

Det. Wilson was identified as the arresting officer on § 87(2)(b)'s BADS arrest report (enc.13a). Sgt. Dannecker, PO LaFauci, Det. DeSantis, and PO Uruymagov were identified from the Tactical Plan (enc.27a). Lt. Putkowski was identified from § 87(2)(b) and § 87(2)(b)'s interview, as well as CTS (enc.5a-g; 6a-e). PO Scott was identified from the 61st Precinct roll call (enc.29a-j).

Officer Statement: Sergeant Michael Dannecker, Brooklyn South Narcotics

On May 22, 2009, Sergeant Michael Dannecker (male, White, § 87(2)(b) brown hair, blue eyes) was interviewed at the CCRB (enc.10a-c). On February 03, 2009, Sgt. Dannecker worked from 10:25am to 7:00pm as the module Sergeant, supervising buy and bust operations within the 61st Precinct. He was assigned to an unmarked Nissan Altima with RMP# § 87(2)(b). He worked with PO LaFauci and Det. Wilson, as well as his module team, and was dressed in plainclothes. From his memo book, he read: "1015 Present for duty. 1250 98, which is taking patrol with PO LaFauci and Det. Wilson, who was the a/o, in the auto 9352. At 1715 I'm administrative in the 61 Precinct processing nine arrests" (enc.9a-b).

On February 03, 2009, Sgt. Dannecker's module was conducting buy and bust operations within the confines of the 61st Precinct. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Dannecker, PO LaFauci, and Det. Wilson moved in and arrested what Sgt. Dannecker remembered to be four individuals for possession (the investigation determined there were only three individuals: § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Dannecker did not recall if the vehicle was on when he approached. It was his decision to stop the individuals inside the vehicle and he had probable cause for the investigation and subsequent arrests as soon as the undercover officer communicated the

aforementioned information. Sgt. Dannecker stated that there were no specific complaints regarding these arrests.

Sgt. Dannecker, Det. Wilson, and PO LaFauci simultaneously approached the vehicle and smelled a strong odor of marijuana emanating from the vehicle. Sgt. Dannecker did not see the individuals smoking marijuana. He approached the passenger-side and did not remember if the vehicle was a four-door or a two-door. As he approached, Sgt. Dannecker saw the rear passenger quickly open and close the door in a motion that looked like something was thrown underneath the car. After the individuals were taken out of the car, a partially burnt marijuana cigar was recovered from the street, underneath the vehicle. He believed that was the only marijuana recovered from this incident.

The individuals then exited the vehicle on their own volition, after being asked to “get out of the car.” The individuals did not hesitate or fail to comply. Neither Sgt. Dannecker nor any officer said, “Open the fucking door and get the fuck out of the car.” Sgt. Dannecker did not recall PO LaFauci grabbing § 87(2)(b) by the arm and pulling her out of the vehicle. Each of the individuals were placed against the car and handcuffed. The individuals were each frisked and searched incident to their arrest. Sgt. Dannecker did not recall which officer frisked and searched which individual, and he did not remember if anything was recovered from the search. They were searched in order to recover evidence, weapons, and for the officers’ safety. PO LaFauci never said, “Don’t fucking move,” or anything to the effect of “fuck” or “fucking.” Sgt. Dannecker’s officers are professional and this was a non-confrontational incident.

Sgt. Dannecker then supervised the vehicle search. In this situation, it is procedure to search the vehicle because there was probable cause that a crime was committed. He did not remember which officers executed the search. No officer ripped a piece of leather upholstery, and from what he remembered, the car was old and beat-up. No officer would rip up a car without a search warrant.

At 3:15pm, the individuals were transported back to the precinct in a prisoner van. According to the Tactical Plan, the van was driven by Det. DeSantis and PO Uruymagov. Sgt. Dannecker was not in the van. He drove to the 61st Precinct, where he later heard a commotion between some parents and 61st Precinct personnel. He did not know who made the commotion or what was going on because he was in a back room processing the arrests. He did not know if an officer refused to provide their name or if an officer threatened to arrest someone for trespassing. Sgt. Dannecker decided to release § 87(2)(b) and § 87(2)(b) with DATs instead of putting them through Central Booking. This was a department policy.

Officer Statement: Officer Victoria LaFauci, Brooklyn South Narcotics

On May 21, 2009, Officer Victoria LaFauci (female, White, § 87(2)(b), brown hair, blue eyes) was interviewed at the CCRB (enc.19a-c). PO LaFauci was since promoted to Detective at the same command. § 87(2)(g)

On February 03, 2009, PO LaFauci worked with Sgt. Dannecker and Det. Wilson. From her memo book, she read: “1430 three under, which means under arrest, in front of 116 Oxford” (enc.18a-b).

There were two females in the front of the car and one male in the back (identified by the CCRB as § 87(2)(b) and § 87(2)(b). Neither PO LaFauci nor any other officer physically removed § 87(2)(b) from the vehicle, or said anything to the effect of: “Open the fucking door and get the fuck out of the car.”

PO LaFauci then took § 87(2)(b) to the rear of the vehicle and frisked her pockets and jacket, but did not search her until later on at the precinct, for marijuana. PO LaFauci did not put § 87(2)(b) against the vehicle in any way. PO LaFauci then frisked § 87(2)(b) while Det. Wilson frisked § 87(2)(b). The individuals were frisked for marijuana and for weapons for safety reasons. No weapons were found and the individuals were not searched. At this point, the individuals were deemed to be under arrest for possession of marijuana and were placed in handcuffs. PO LaFauci did not recall if the car was searched, and at no point did she or another officer tear a piece of leather upholstery in the car. At no point did PO LaFauci or

any other officer say, “No, don’t fucking move,” or use any derivative of the word “fuck” in response to § 87(2)(b) asking to pull her pants up or otherwise.

§ 87(2)(b) s mother (identified by the CCRB as § 87(2)(b) later arrived at the precinct to pick up § 87(2)(b) § 87(2)(b) was upset and officers from the 61st precinct asked her to leave. § 87(2)(b) was overreacting by screaming and cursing, but PO LaFauci did not remember what she said and did not know how the officers responded. PO LaFauci did not recall § 87(2)(b) requesting the names of any officers, and stated that she could not have been arrested for trespassing. PO LaFauci did not hear an officer tell § 87(2)(b) to get out before she is charged with trespassing, or anything to that effect.

PO LaFauci did not know if anyone named § 87(2)(b) or § 87(2)(b) was involved in the incident. At no point did PO LaFauci hear an officer say, “You have the right to shut the fuck up,” or, “If I had a daughter I wouldn’t let her dress like a slut, like you.” PO LaFauci stated that a Russian speaking officer named Uruymagov works at her command, but she did not recall if he was working on date of incident. She did not remember an officer with an injured or cut lip.

Arrest Reports by Detective Edward Wilson

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Officer Statement: Detective Edward Wilson, Brooklyn South Narcotics

On June 11, 2009, Detective Edward Wilson (male, White, § 87(2)(b), black hair, brown eyes) was interviewed at the CCRB (enc.17a-b), § 87(2)(g)
§ 87(2)(b)

On February 03, 2009, Det. Wilson worked as the arresting officer with Sgt. Dannecker and PO LaFauci. From his memo book, he read: “1430 hours, I have three under arrest. § 87(2)(b) I have it listed as an undercover operation in front of 115 Oxford Street” (enc. 11a-b).

Det. Wilson stood by § 87(2)(b) but did not know where around the vehicle Sgt. Dannecker and PO LaFauci were positioned. When § 87(2)(b) exited the vehicle, Det. Wilson observed him drop a marijuana cigarette to the street, at which point Det. Wilson deemed all three occupants to be under arrest. Det. Wilson recovered the marijuana cigarette. Det. Wilson handcuffed § 87(2)(b) and was not sure whose decision it was to handcuff § 87(2)(b) and § 87(2)(b). Det. Wilson did not recall if the vehicle was searched, and he did not search the vehicle. There was an unrelated buy on the corner of Oriental Blvd. and Oxford St. a few minutes prior to the arrests. Det. Wilson did not know those individuals’ names.

§ 87(2)(b) and § 87(2)(b) were transported back to the precinct in the prisoner van. Det. Wilson was not in the prisoner van and did not know which officers were. Each of the individuals was charged with possession because they were observed passing the marijuana around. Because Det. Wilson was at the precinct filling out arrest paperwork, he did not hear what was said between § 87(2)(b) and the 61st Precinct personnel.

Officer Statement: Detective Joseph DeSantis, Brooklyn South Narcotics

On June 26, 2009, Detective Joseph DeSantis (male, White, § 87(2)(b), brown hair, hazel eyes) was interviewed at the CCRB (enc.21a-b), § 87(2)(g)
§ 87(2)(b)

On February 03, 2009, Det. DeSantis worked from 10:27am to 7:00pm on a buy and bust operation and drove a prisoner van with RMP# § 87(2)(b). He worked with PO Uruymagov and was dressed in plainclothes.

From his memo book, he read: "At 1430 I have a pickup of three people on Oxford and Shore Boulevard. And 1435 a pickup of two additional people at Norfolk and Shore Boulevard" (enc.20a-c).

Det. DeSantis and PO Uruymagov were called to pick up prisoners. As they drove down the block, Det. DeSantis saw that the supervisor auto had stopped a vehicle. There were three individuals (identified by the CCRB as § 87(2)(b) and § 87(2)(b) standing outside of the vehicle with Sgt. Dannecker, Det. Wilson, and possibly one other officer. Det. DeSantis and PO Uruymagov stopped to assist.

Det. DeSantis and PO Uruymagov helped secure the prisoners, who were already outside the vehicle when Det. DeSantis and PO Uruymagov arrived. Det. DeSantis was unsure if the prisoners were already behind the vehicle, but he did stand behind the vehicle with them, watching over them. Det. DeSantis did not recall if they were already handcuffed upon his arrival. He did not search the vehicle.

Less than five minutes after arriving on scene, Det. DeSantis and PO Uruymagov put the arrested individuals in the prisoner van. § 87(2)(b) was placed in the far back, and § 87(2)(b) and § 87(2)(b) in the row closest to the front. Det. DeSantis was the driver, and no other officers were in the van besides Det. DeSantis and PO Uruymagov. Det. DeSantis did not remember having an injured lip that day, but he remembered the prisoners telling him that he looked like Edward Norton.

The prisoners, including two additional prisoners who were picked up along the way (identified by the CCRB as § 87(2)(b) and § 87(2)(b) all seemed to know each other. They were laughing and singing with the radio, and were having a good time. The females started to complain about menstrual problems and that they needed a bathroom. The officers informed them that they were male officers, so there was nothing they could do, but that they would have a female officer meet them at the precinct to deal with it. Det. DeSantis did not recall how long they drove around in the vehicle before taking the prisoners to the precinct. Det. DeSantis did not recall a female asking him if her rights could be read, and he did not recall saying, "You have the right to shut the fuck up." He did not remember how § 87(2)(b) was dressed. Neither he nor PO Uruymagov told § 87(2)(b) "If I had a daughter, I wouldn't let her dress like a slut, like you."

Later on, inside the 61st Precinct, there was some commotion when one of the prisoner's mothers arrived (identified by the CCRB as § 87(2)(b). Det. DeSantis could hear the commotion from the muster room. He heard yelling, but could not distinguish what was said. Someone informed Det. DeSantis that the individuals were asked to leave the precinct because they were yelling. He did not know who asked them to leave and did not remember who informed him about what happened.

While inside the 61st Precinct, Det. DeSantis brought the prisoners out of their cells and had them sign a DAT. He went to make photocopies and gave one to Det. Wilson and the other to the individuals being released. He did not know if an officer was with § 87(2)(b) by the front desk as she was leaving. If he had any communication with § 87(2)(b) then it was just to hand her the ticket and explain that they had to meet the court date or there would be a warrant. § 87(2)(b) did not request his name or badge number, and he did not hear an officer say anything to the effect of, "Get out before we charge you with trespassing." His entire field team was inside the precinct, and he was not aware of any other plain-clothed officers present at this time.

Officer Statement: Officer Oleg Uruymagov, Brooklyn South Narcotics

On July 01, 2009, Officer Oleg Uruymagov (male, White, § 87(2)(b) brown hair, brown eyes) was interviewed at the CCRB (enc.23a-b), § 87(2)(g)

On February 03, 2009, PO Uruymagov worked with Det. DeSantis. From his memo book, he read: "1430 Three under at the corner of Oxford and Shore" (enc.22a-b).

PO Uruymagov and Det. DeSantis put § 87(2)(b) and § 87(2)(b) into the prisoner van, and there was no one else in the van at this point. Five additional prisoners were subsequently picked

up. He did not recall Det. Desantis or himself speaking with the females. PO Uruymagov went inside the 61st Precinct, but he did not remember either of the females' mothers coming to the precinct. He did not recall a commotion; he was in a room doing finger prints and was not near the front desk. He did not escort either of the females to the front desk and did not know which officer did.

Officer Statement: Lieutenant Paul Putkowski, 61st Precinct

On June 26, 2009, Lieutenant Paul Putkowski (male, White, § 87(2)(b), blonde hair, blue eyes) was interviewed at the CCRB (enc.25a-b), § 87(2)(g)

On February 03, 2009, Lt. Putkowski worked from 2:45pm to 11:30pm as the desk officer doing administrative work. He worked with Sgt. Blake, who was the desk sergeant that day, and was dressed in uniform, with a white shirt. He had no entries in his memo book pertaining to the incident (enc.24a-b).

Lt. Putkowski was in an office adjacent to the front desk inside the 61st Precinct. At approximately 7:00pm, an unidentified detective of the Narcotics Bureau was at the front desk with a female teenager (identified by the CCRB as § 87(2)(b)). At this time, a middle-aged female (identified by the CCRB as § 87(2)(b)) bypassed the partition separating the seating area from the desk area. The partition is a solid metal barrier, approximately four feet high by eight feet wide. There were no signs saying not to pass. It used to say, "Authorized personnel only." § 87(2)(b) said she was § 87(2)(b)'s mother and that she was there to pick up her daughter. The detective told § 87(2)(b) to step back. She complied, but then walked past the partition again a few seconds later. The detective told her to step back again, and she complied.

The detective then walked § 87(2)(b) to the seating area, at which point Lt. Putkowski heard an argument ensue. This argument carried on for two or three seconds before Lt. Putkowski approached. § 87(2)(b) apparently took offense over being told to step back. It was clear to Lt. Putkowski that § 87(2)(b) took offense because her voice was raised and she seemed agitated. She was complaining about the detective having asked her to step back. At this point, a male in his late fifties or early sixties (identified by the CCRB as § 87(2)(b)) said, "This is bullshit." § 87(2)(b) and § 87(2)(b) appeared to be together. Lt. Putkowski told § 87(2)(b) and § 87(2)(b) that they were disrupting the other civilians in the stationhouse, that they were disrupting government administration, and that they would have to leave. § 87(2)(b) requested Lt. Putkowski's name, and he replied, "Lieutenant Putkowski." She asked for his name again, and he repeated, "Lieutenant Putkowski." She confirmed that she heard his name by saying, "Putkowski." He was the only officer wearing a white shirt in the precinct at that time, and Lt. Putkowski did not recall her requesting any other officer's name.

§ 87(2)(b) continued to yell at the detective, saying something to the effect of, "Why did you tell me to step back and leave the area?" The volume of her voice was approximately a seven on a scale of one-to-ten. At no point did an officer yell at her. There were approximately ten other civilians in the seating area who seemed disturbed, judging from their facial expressions. Lt. Putkowski then instructed § 87(2)(b) and § 87(2)(b) to leave; otherwise they may be subject to arrest. He did not recall his exact words. § 87(2)(b) and § 87(2)(b) complied and left the stationhouse with § 87(2)(b). Other officers were around at this time, including Sgt. Blake and the five plain-clothed Narcotics Bureau officers. He did not recall any other officers of the 61st Precinct being there.

Both § 87(2)(b) and § 87(2)(b) were obstructing government administration because there were about ten other civilians in the waiting area who looked upset about what was going on, judging from their facial expressions. Furthermore, if anyone came to the stationhouse to make a complaint, § 87(2)(b) and § 87(2)(b) were blocking the door area. So, both their demeanor and where they were standing disrupted government administration. She could also have been arrested for trespassing, but Lt. Putkowski did not recall mentioning trespassing when he advised her that she may be subject to arrest if she did not leave. No other officer mentioned trespassing. She could have been charged with trespassing for failure to leave when told to leave.

Officer Statement: Officer Tanagne Scott, 61st Precinct

On September 01, 2009, Officer Tanagne Scott (female, Black, § 87(2)(b), brown hair, brown eyes) was interviewed at the CCRB (enc.26a-b). Her statements were consistent with Lt. Putkowski's, with the following additional information:

On February 03, 2009, PO Scott worked from 3:00pm to 11:35pm as the TS Operator. Her duty was to answer the phone by the front desk. She worked alone, in uniform, and did not recall who the desk supervisor was that day. She had no entries in her memo book regarding the incident. PO Scott did not recall the incident. PO Scott stated that normally there is a table that may not be passed with a sign indicating this.

Police Documents

The Tactical Plan indicated that Sgt. Dannecker, Det. Wilson, and PO LaFauci were assigned to a gray Nissan, RMP § 87(2)(b) which was the leader auto with the arresting officer (enc.27a). The prisoner van, RMP § 87(2)(b) was driven by Det. DeSantis and PO Uruymagov. Kingsborough Community College was listed as one of the locations under investigation due to community complaints about marijuana.

Tour 3 roll call of the 61st Precinct indicated that Lt. Putkowski worked as the Platoon Commander and that PO Scott worked as the Telephone Service Operator (enc.29a-j). The command log did not mention the incident (enc.28a-b).

Disposition of Arrest

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian Conviction History

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

Sgt. Dannecker has had one substantiated frisk allegation filed against him with the CCRB for which he received instructions during his ten years of service to the NYPD (enc.2a-d). PO LaFauci has had no substantiated allegations filed against her during her eight years of service to the NYPD. Det. DeSantis has had no substantiated allegations filed against him during his eleven years of service to the NYPD. Lt. Putkowski had had no substantiated allegations filed against him during his twenty-two years of service to the NYPD.

Neither § 87(2)(b) nor § 87(2)(b) has filed previous complaints with the CCRB (enc.3a-b).

Conclusions and Recommendations

Officer Identification

Sgt. Dannecker was identified as the ranking officer on the Tactical Plan, and during his CCRB interview, he explained that it was his decision to stop and arrest § 87(2)(b) and § 87(2)(b). He also supervised the vehicle search. Stop and car search allegations are therefore being pleaded against him (Allegations A and C).

§ 87(2)(b) alleged that a female officer used discourteous language towards her. Since PO LaFauci was the only female officer on scene, the allegation is being pleaded against her (Allegation B). Since § 87(2)(b) alleged that the same female officer who arrested § 87(2)(b) refused to provide her name while inside the 61st Precinct stationhouse, this allegation is also being pleaded against her (Allegation G).

§ 87(2)(b) also alleged that the driver of the prisoner van used discourteous language towards her and offensive language towards § 87(2)(b). Since Det. DeSantis drove the prisoner van, the allegations are being pleaded against him (Allegations D and E). § 87(2)(b) alleged that a thin, plain-clothed male officer refused to provide his name to her. In a subsequent phone conversation, she said this officer did not have an accent (PO Uruymagov has a noticeable accent). Lt. Putkowski acknowledged that a male, plain-

clothed officer spoke with § 87(2)(b) Det. Wilson and Sgt. Dannecker stated that they were processing arrest paperwork in the back of the precinct, nowhere near the front desk. Since Det. DeSantis matches the pedigree information provided by § 87(2)(b) (male, white, 5'9", slim, 165lbs, early 30s), and since he stated that he handed § 87(2)(b)'s DAT to § 87(2)(b) it was determined that he was near the front desk. The allegation is therefore being pleaded against him (Allegation F).

§ 87(2)(b) alleged that an officer threatened to arrest her. Since Lt. Putkowski acknowledged advising § 87(2)(b) that she could be arrested if she did not leave the stationhouse, the allegation is being pleaded against him (Allegation H).

Undisputed Facts

It is undisputed that § 87(2)(b) and § 87(2)(b) were stopped, and that the vehicle in which they were occupants was searched. It is also undisputed that Lt. Putkowski told § 87(2)(b) that she would be subject to arrest if she did not leave the 61st Precinct Stationhouse.

Disputed Facts

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Assessment of Evidence

§ 87(2)(b) alleged that she, § 87(2)(b) and § 87(2)(b) were stopped while inside her vehicle, which was off at the time. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) alleged that PO LaFauci and Det. DeSantis used discourteous language towards her, and that Det. DeSantis also spoke offensively to § 87(2)(b). PO LaFauci and Det. DeSantis denied the allegations, as did the officers who were on scene at the time. § 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) also alleged that the officers searched everywhere inside her vehicle except the trunk. Sgt. Dannecker stated that the vehicle was searched because, § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) alleged that PO LaFauci and Det. DeSantis refused to provide their names. Each of the officers interviewed either denied or did not recall the allegations. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) also alleged that Lt. Putkowsky threatened to arrest her. Lt. Putkowsky explained that, after she continued to yell and block the entryway to the stationhouse, he advised § 87(2)(b) that she would be subject to arrest if she did not leave the precinct. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A) Sgt. Michael Dannecker stopped § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

According to Kamin's New York Search and Seizure, an officer may stop an individual when he reasonably suspects that the individual has committed a felony or misdemeanor defined in the penal law (enc.1a-d). § 87(2)(g)

It is therefore recommended that Allegation A be closed as *exonerated*.

Allegation B) PO Victoria LaFauci spoke rudely to § 87(2)(b)

Allegation D) Det. Joseph DeSantis spoke rudely to § 87(2)(b)

Allegation E) Det. Joseph DeSantis made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)

Allegation G) Det. Joseph DeSantis refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that PO LaFauci and Det. DeSantis spoke rudely to her, and that Det. DeSantis spoke offensively to § 87(2)(b). § 87(2)(b) further alleged that Det. DeSantis refused to provide his name. Each of the officers interviewed denied these allegations. § 87(2)(g)

It is therefore recommended that Allegations B, D, E, and G be closed as *unsubstantiated*.

Allegation C) Sgt. Michael Dannecker searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) alleged that officers searched her vehicle. Sgt. Dannecker confirmed that he supervised the search. An officer may search a vehicle without a warrant when he has probable cause to believe that the vehicle contains evidence of a crime (enc.1a-d). § 87(2)(g)

§ 87(2)(b) It is therefore recommended that Allegation C be closed as *exonerated*.

Allegation F) PO Victoria LaFauci refused to provide her name to § 87(2)(b)

§ 87(2)(b) alleged that PO LaFauci refused to provide her name. However, § 87(2)(b) was unable to provide any details about the conversation in which the request was made, and there were many other officers inside the stationhouse at the time. The officers claimed not to recall such a request, and § 87(2)(b) did not mention it. § 87(2)(g)

§ 87(2)(b) As such, it is recommended that Allegation F be closed as *unfounded*.

Allegation H) Lt. Paul Putkowski threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that an officer threatened to arrest her. Lt. Putkowski acknowledged telling her that she would be subject to arrest if she did not leave the precinct. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that Allegation H be closed as *exonerated*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: